

NSWC PCD INDUSEC LIMITED DISTRIBUTION MATERIALS SOP

Purpose:

Often it is necessary to issue a request for information, quote, or solicitation that requires vendor access to limited distribution materials or associated equipment. In many cases, the available responsible offerors will meet the limited distribution criteria. However, in some cases, not all responsible offerors will be eligible to receive the necessary materials. This SOP provides example text and processes that can be used to navigate such conditions without narrowing the scope of responses to just those vendors that happen to currently still be eligible to receive the information of interest.

Process:

All requests for information should be vetted to ensure limited distribution materials only go to vendors with a clear need to know and access eligibility or a justified provision of temporary access eligibility (i.e., a distribution exception).

- 1.) Use the PDF form NSWCPCD REQUEST FOR ACCESS TO LIMITED DISTRIBUTION MATERIALS to facilitate the adjudication of all requests received for the solicitation. Send the form to the potential vendor.
- 2.) Upon form completion, the potential vendor(s) will return their completed forms to NSWCPCD_INDUSEC@us.navy.mil.
- 3.) Industrial Security (INDUSEC) will verify the potential vendor(s) Commercial and Government Entity (CAGE) Code to verify the company's Facility Clearance Level (FCL).
 - a. If the FCL is at the appropriate level, the INDUSEC team will prepare one of the following applicable memorandums based on the conditions below:

i. MEMORANDUM- Condition 1 Limited Distribution

Condition 1: The information requester qualifies by meeting the limited dissemination criteria stated in the distribution statement of the requested material.

ii. MEMORANDUM- Condition 2a Limited Distribution Exception

Condition 2a: The information requester is a Government entity (local, state, or federal) whose use of the information could serve the interest of the U.S. Sailor and provide benefits that outweigh the risks of information dissemination (e.g., a DHS component seeking technical assistance with a PPE procurement requests materials marked as restricted to DoW only.)

iii. MEMORANDUM- Condition 2b Limited Distribution Exception

Condition 2b: The information requester is a U.S. company whose use of the information could result in potential gains to the Government from additional industry competition or innovation achievable only through the assumption of risk associated with the distribution exception (e.g., demonstrated ability to manufacture, in the United States, Buy American Act and Berry Amendment compliant end items similar to that desired as evidenced by production for the commercial sector or under contract with a U.S. Government entity (federal, state, or local)).

- b. If the FCL is not at the appropriate level, use the **MEMORANDUM- Limited Distribution Rejection** and return the signed memorandum to the company.
- 4.) Once favorable access eligibility has been determined for the limited distribution materials, the INDUSEC team will notify the purchase Technical Point of Contact (TPOC) and Contracting Officer (KO)/ Engineering Liaison Officer (ELO) via email with approved memorandum attached that the limited distribution material may be provided to the potential vendor.
 - a. Transmission of the limited distribution materials shall only be delivered to the potential vendor(s) via DoD SAFE during the solicitation process by either the Technical Point of Contact (TPOC) or Contracting Officer (KO)/ Engineering Liaison Officer (ELO).
- 5.) If access is **not favorable**, the INDUSEC team will notify the vendor via the limited distribution rejection memorandum, as well as notify the purchase TPOC and KO/ELO via email that the potential vendor is not authorized to view the limited distribution materials.

Exceptions: No distribution exception shall be authorized without Naval Surface Warfare Center Panama City Division (NSWC PCD) explicit approval and concurrence.

The Government only authorizes distribution exceptions when the Government deems the risk posed by the exception as outweighed by the potential gains from additional industry competition or innovation achievable only through the assumption of risk associated with the distribution exception.

Remember: All distribution exceptions incur risk to the Sailor, the U.S. Government, or U.S Government interests.

In all cases where the Government assumes the Operations Security (OPSEC) risk and grants a distribution exception, the Government requires that the recipients disallow any additional dissemination of received documents without prior, written, Government consent.

Specific examples of denial situations:

- Vendor provided information that is not verifiable or is different from the information obtained from verification sources.
 - Vendor claims are demonstrably false.
 - Vendor has no verifiable U.S. based manufacturing capability.
 - Vendor has no demonstrated or verifiable ability to manufacture any like end items or end item components.
 - Vendor does not provide sufficient information for a risk-based decision.
 - Vendor has no intention of manufacturing or submitting a bid for the manufacture of the solicited goods.
 - Vendor is a third-party consultant.
- 6.) File all applicable memorandums and documents within the solicitation folder on the INDUSEC Teams Channel.